Harry M. Barton
Assistant General Counsel
504-576-2984 | hbarton@entergy.com
639 Loyola Avenue, New Orleans, LA 70113

December 18, 2023

RECEIVED
DEC 18 2023
LA Public Service Commission

BY HAND DELIVERY
Mr. Brandon Frey
Louisiana Public Service Commission
602 North Fifth Street
Baton Rouge, Louisiana 70802

Re: ***Ex Parte:*** **Application of Entergy Louisiana, LLC for Approval of the Mondu Solar Power Purchase Agreement, Expansion of the Geaux Green Option, Cost Recovery and Related Relief (LPSC Docket No. U-_____)**

Dear Mr. Frey:

I have enclosed, on behalf of Entergy Louisiana, LLC ("ELL" or "Company"), the original and three copies of a Non-Confidential Public Version of the Company's Application of Entergy Louisiana, LLC for Approval of the Mondu Solar Power Purchase Agreement, Expansion of the Geaux Green Option, Cost Recovery and Related Relief. This application is supported by the Direct Testimony and Exhibits of Laura K. Beauchamp, Elizabeth C. Ingram, and Daniel C. Boratko. Please retain the original and two copies for your files and return a date-stamped copy to our courier.

I have also enclosed five copies of the Confidential Version of the referenced filing, which is being provided under seal pursuant to the provisions of the LPSC General Order dated August 31, 1992, and Rules 12.1 and 26 of the Commission's Rules of Practice and Procedure. The confidential materials included in the filing consist of competitively sensitive market information or sensitive infrastructure information, the disclosure of which may create an artificial target for suppliers/vendors or create physical security risks. For this reason, this material is confidential and commercially sensitive. The disclosure of the information contained herein would subject not only the Company, but also its customers, to a substantial risk of harm. Accordingly, it is critical that this information remain confidential.

Please retain the appropriately marked Confidential Version for your files and return a date-stamped copy to our courier. Additional copies of the Confidential Version of this filing will be provided to the appropriate representatives of the Louisiana Public Service Commission Staff and made available to intervenors once a suitable Confidentiality Agreement has been executed by the parties.

If you have any questions, please do not hesitate to call me. Thank you for your courtesy and assistance with this matter.

Sincerely,

Harry M. Barton

ROUTE TO
DEPT. Bull DATE 12/19
ROUTE FRO
DEPT.
DEPT. DATE DEPT.
DEPT. DATE DEPT.
DEPT. DATE DEPT.

HMB/lp
Enclosures
cc: LPSC Commissioners (*public version only via electronic mail*)

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LA Public Service Commission

BEFORE THE

LOUISIANA PUBLIC SERVICE COMMISSION

EX PARTE: **APPLICATION OF ENTERGY LOUISIANA, LLC FOR APPROVAL OF THE MONDU SOLAR POWER PURCHASE AGREEMENT, EXPANSION OF THE GEAUX GREEN OPTION, COST RECOVERY AND RELATED RELIEF**	)))))))	**DOCKET NO. U-_____**

APPLICATION OF ENTERGY LOUISIANA, LLC FOR APPROVAL OF THE MONDU SOLAR POWER PURCHASE AGREEMENT, EXPANSION OF THE GEAUX GREEN OPTION, COST RECOVERY AND RELATED RELIEF

NOW COMES Entergy Louisiana, LLC ("ELL" or the "Company"), through undersigned counsel, and respectfully submits to the Louisiana Public Service Commission ("LPSC" or "Commission") this Application, which seeks certification of and approval for the addition of a new solar photovoltaic ("PV") resource to the Company's generation portfolio, a power purchase agreement ("PPA") for 100 megawatts ("MW") of capacity, energy and other related products from the Mondu Solar facility (the "Mondu Facility" and "Mondu PPA"), which ELL selected from its 2022 Request for Proposals ("RFP") for Renewable Resources ("2022 Renewables RFP"). Company is requesting a finding that the Mondu PPA is in the public interest, that the costs of investment in the Mondu PPA are deemed eligible for recovery through appropriate rate mechanisms and related regulatory relief necessary to bring the Mondu PPA to fruition. The Company also requests that the Mondu PPA be deemed eligible for inclusion in the Company's Geaux Green Option ("Rider GGO") portfolio. In support of these requests, the Company represents the following:

INTRODUCTION

I.

ELL is a limited liability company duly authorized and qualified to do business in the State of Louisiana, created and organized for the purposes, among others, of manufacturing, generating, transmitting, distributing, and selling electricity for power, lighting, heating, and other such uses.

II.

The Mondu Facility was selected from the Company's 2022 Renewables RFP. The Mondu PPA was executed between ELL and Mondu Solar, LLC, which is an indirect wholly owned subsidiary of NextEra Energy Capital Holdings. The PPA is included as HSPM Exhibit LKB-3 to the Direct Testimony of Laura K. Beauchamp.

The resource will serve the public interest by providing benefits to ELL's customers and the State of Louisiana for numerous reasons explained in this Application and supporting testimony. The Mondu PPA will allow the Company to continue to provide reliable electric service to its customers at a reasonable cost. Additionally, the Mondu PPA will help meet the Company's long-term capacity needs while providing benefits (economic and otherwise) to ELL's customers.

III.

The Mondu Facility will be constructed in Pointe Coupee Parish, Louisiana, which means that local economies will benefit from the jobs created during construction and the tax revenues generated as a result of their construction.

IV.

The Mondu PPA, when coupled with the Rider GGO,[1] will help ELL's customers work toward meeting their environmental and sustainability goals. As Company witness Elizabeth C. Ingram describes in greater detail, a growing number of ELL's commercial and industrial ("C&I") customers have asked for assistance in aligning their electric energy consumption with such goals. As was demonstrated in the record of Docket No. U-36190 in which Rider GGO was approved, ELL and the Commission's responsiveness to these customers' desires in this regard will be important for continuing to make Louisiana an attractive location for existing, and potentially new, C&I customers.

V.

As Ms. Ingram explains, since its approval, Rider GGO has proven to be an attractive offering for C&I customers with sustainability goals. ELL is requesting that the Commission approve the Mondu PPA as eligible to support Rider GGO in order to increase the amount of Rider GGO subscriptions available for interested customers. ELL proposes that this expansion of Rider GGO be done in compliance with the terms under which the Commission approved Rider GGO in Order No. U-36190 and in a manner consistent with the Commission's approved allocations of costs, benefits, and the ratemaking treatment associated therewith.

VI.

The Application and supporting testimony present specific information on the Mondu PPA and regulatory policy supporting the Company's requested relief. With this Application,

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[1] Rider GGO is a voluntary offering that allows eligible customers to align some or all of their electricity requirements with renewable resources along with the Renewable Energy Certificates ("RECs"). The Commission approved Rider GGO for implementation and found that it serves the public interest in October 2022. *See* Order No. U-36190 (October 14, 2022), In re: Application for Certification and Approval of the 2021 Solar Portfolio, Rider Geaux Green Option, Cost Recovery and Related Relief, Docket No. U-36190. The Company has an application pending before the Commission to expand Rider GGO to include additional resources from ELL's 2022 Solar Portfolio in Docket No. U-36685.

the Company is submitting the Direct Testimonies of Laura K. Beauchamp, Elizabeth C. Ingram, and Daniel C. Boratko. The purpose of the testimony of each witness is as follows:

- Laura K. Beauchamp – Director, Resource Planning and Market Operations for ELL. Ms. Beauchamp describes ELL's rationale for issuing the 2022 Renewables RFP, including the objectives that inform ELL's long-term resource planning process, and the reasons that the Mondu PPA helps to meet these objectives. She explains the benefits that the Mondu PPA is expected to provide to ELL's customers and the reasons that the Company asks that the Commission find, among other things, that the Mondu PPA serves the public convenience and necessity, is in the public interest, and is therefore prudent.

- Elizabeth C. Ingram – Director, Regulatory Affairs for ELL. Ms. Ingram discusses the policy factors supporting a determination that approval of the Company's Application serves the public interest, which factors include compliance with all applicable Commission orders. Ms. Ingram also discusses the Company's request that the costs of the Mondu PPA be deemed eligible for recovery through the applicable mechanisms in place at the time that the Mondu Facility is placed into service. Ms. Ingram discusses the customer demand for enrollment in Rider GGO and the Company's request that the Mondu PPA be approved for inclusion in Rider GGO's resource portfolio to help satisfy this demand and assist ELL's customers in meeting their sustainability goals.

- Daniel C. Boratko – Manager, Supply Planning and Analysis, for the System Planning and Operations organization. Mr. Boratko describes the economic assessment of proposals received in the 2022 Renewables RFP. He also discusses the viability, accounting, and deliverability assessments that were part of the overall evaluation of proposals received in the RFP. Mr. Boratko also discusses the basis for the Company's selection of the Mondu Facility

from the RFP. Finally, he discusses the economic analyses performed to evaluate the Mondu PPA.

THE 2022 RENEWABLES RFP

VII.

The 2022 Renewables RFP is one component of the Action Plan set out in ELL's 2019 Integrated Resource Plan ("2019 IRP").[2] Further, as described in ELL's 2023 IRP and demonstrated in Commission Docket U-36190, ELL is projected to need additional long-term generating capacity over the course of the planning horizon.[3] In each of these assessments, solar resources were identified as an economic option to address long-term capacity and energy needs. The issuance of ELL's 2022 Renewables RFP, and the selection of the Mondu Facility therefrom, furthers ELL's resource planning objectives of providing reliable electric service to its customers at the lowest reasonable cost and in a manner consistent with principles of prudent resources planning, which Ms. Beauchamp discusses in detail.

VIII.

As Ms. Beauchamp and Mr. Boratko explain, the 2022 Renewables RFP was conducted in accordance with the process outlined in the Market Based Mechanisms General Order (the "MBM

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[2] Integrated Resource Planning ("IRP") Process for Entergy Louisiana, LLC Pursuant to the General Order No. R-30021, Dated April 20, 2012 (May 23, 2019), *Docket No. I-34694.*

[3] ELL's most recent submission of an IRP to the Commission was on May 22, 2023 (ELL's "Final 2023 IRP") and reflects inputs and assumptions that were established based on Business Plan 2022. *See* Final 2023 IRP (May 22, 2023), *2023 Integrated Resource Plan-Final Report for Entergy Louisiana, LLC Pursuant to the General Order No. R-30021, Docket No. I-36181.*

Order"),[4] including posting the draft 2022 Renewables RFP for comment by market participants and Commission Staff; obtaining and responding to such comments; conducting a Bidders' and Technical Conference to present the draft 2022 Renewables RFP and respond to questions from market participants; identifying clearly the resource needs and the products for which proposals were sought to meet those needs; engaging the services of an Independent Monitor ("IM") to oversee the design and conduct of the 2022 Renewables RFP; ensuring that the IM had full access to all 2022 Renewables RFP processes and evaluations and the opportunity to provide comment and direction regarding those matters; designing processes appropriately to safeguard confidential information, including confining the dissemination of information to only those persons engaged in the 2022 Renewables RFP process and in accordance with practices approved by the IM; and conducting the 2022 Renewables RFP in a manner that was fair and impartial to all bidders and resulted in selecting the lowest reasonable cost resources from the 2022 Renewables RFP that could meet the supply needs of customers.[5] Also, as required by the MBM Order, the Commission Staff was informed of the development and implementation of the 2022 Renewables RFP and resource selection.

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[4] *See* General Order, Docket No. R-26172, Subdocket A, *In re: Development of Market-Based Mechanisms to Evaluate Proposals to Construct or Acquire Generating Capacity to Meet Native Load*, which Supplements the September 20, 1983 General Order, dated February 16, 2004, as amended by General Order, Docket No. R-26172, Subdocket B, dated November 3, 2006, and further amended by the April 26, 2007 General Order, and the amendments approved by the Commission at its October 15, 2008 Business and Executive Meeting, and now in General Order, Docket No. R-26172, Subdocket C, dated October 29, 2008, *In re: Possible Suspension of, or Amendments to, the Commission's General Order dated November 3, 2006 (Market Based Mechanisms Order) to Make the Process More Efficient and to Consider Allowing the Use of On-Line Auctions for Competitive Procurement.*

[5] As Ms. Beauchamp explains in her Direct Testimony, ELL selected nearly 2,000 MW of renewable resources in response to this RFP. Given the various challenges in the solar market, however, and for a number of reasons, many of the proposals selected did not come to fruition in terms of executed contracts. Certain proposals do remain in negotiation, and should definitive agreements be reached, ELL will make the required certification filings with the LPSC.

THE MONDU PPA

IX.

Under the Mondu PPA, the Company will acquire 100 MW of unit-contingent, as-available capacity, energy and other products from the Mondu Facility. The Mondu Facility has a total nameplate capacity of 150 MW, of which 100 MW is subject to the PPA at issue in this Application.[6] As Ms. Beauchamp describes in more detail, the Mondu Facility is a 150 MW_{AC} solar PV resource located on a 1,574-acre greenfield site in Pointe Coupee Parish, Louisiana. ELL proposes to enter into a 20-year PPA with the developer of this facility, Mondu Solar, LLC. Under the PPA, ELL will purchase an expected 100 MW of unit-contingent, as-available capacity, capacity-related benefits, energy, environmental attributes, and other electric products (voltage support or ancillary services) from the facility. The Mondu PPA, which is designated as Highly Sensitive Protected Materials ("HSPM"), is attached to Ms. Beauchamp's Direct Testimony as Exhibit LKB-3.

X.

The economic evaluation conducted for the 2022 Renewables RFP indicated that the Mondu Facility was among the highest ranked PPA proposals and will provide benefits to ELL's customers. In addition to the resource's ability to meet the growing demand for renewable resource options as discussed by Ms. Beauchamp and Ms. Ingram in their Direct Testimonies, the Mondu PPA also is expected to provide variable supply cost, capacity, fuel price stability, and renewable energy certificate (REC) benefits to customers. Mr. Boratko fully describes the

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[6] The remaining 50 MW of capacity from the Mondu Facility is the subject of two 25-MW PPAs between the owner of the facility (NextEra Energy Marketing, LLC and Mondu Solar, LLC) and Concordia Electric Cooperative, Inc. (which is the subject of Docket No. U-36514) and Pointe Coupee Electric Membership Corp. (which is the subject of Docket No. U-36515). Both of these PPAs were approved by the Commission at its meeting on December 13, 2023.

analyses and assumptions used to identify and derive the calculation of these benefits in his Direct Testimony.

COMPLIANCE WITH APPLICABLE COMMISSION RULES AND ORDERS AND OTHER REGULATORY APPROVALS

XI.

For the reasons discussed herein and as explained in the Direct Testimonies of ELL's witnesses, the Mondu PPA serves the public convenience and necessity and is in the public interest, and therefore prudent, and should be certified in accordance with the Commission's 1983 General Order.[7] The 2023 Solar Portfolio will allow the Company to continue to fulfill its obligation to provide reliable electric service to its customers at the lowest reasonable cost. As Ms. Beauchamp explains, this is because the Mondu PPA will help to meet the Company's long-term capacity needs while providing benefits to ELL's customers. The Mondu PPA, when coupled with Rider GGO, will also provide a means for assisting ELL's customers to meet their environmental sustainability goals and, as has been discussed herein, allow the State of Louisiana to remain competitive in its ability to attract, or retain, large commercial and industrial operations. Finally, it should be noted that the Mondu Facility will be constructed in Louisiana. This means that local economies will benefit from the jobs created during construction and the tax revenues generated as a result of their construction. Ms. Beauchamp also provides evidence that addresses the requirements of the 1983 General Order, including the terms and conditions of the Mondu PPA.

XII.

The MBM Order augments the procedures of the 1983 General Order and generally requires a utility proposing to acquire or build new generating capacity to "employ a market-based

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[7] *See* General Order (Corrected) (May 27, 2009), *In re: Possible Modifications to the September 30, 1983 General Order to Allow: (1) for More Expeditious Certifications of Limited-Term resource Procurements; and (2) an Exception for Annual and Seasonal Liquidated Damages Block Energy Purchases,* Docket No. R-30517.

mechanism" consisting of an RFP competitive solicitation process. For all the reasons mentioned herein, and as further discussed in the Company's testimony, the 2022 Renewables RFP was conducted in accordance with the MBM Order, and the selection of the Mondu Facility was also consistent with the Order.

XIII.

The Company is seeking specific approval of the terms, conditions, rights, remedies, and limitations set forth in the Mondu PPA, as well as confirmation that ELL and Entergy Corporation shareholders will not be responsible, beyond the remedies specified in the agreement, for any acts or omissions by the Seller, its employees, or contractors of any tier for any incident arising out of the work performed by or for the Seller under the PPA, absent imprudence on the part of ELL.

XIV.

The Company is asking the Commission to acknowledge that it may become necessary for the Company to seek rate relief if, during term of the Mondu PPA, the Company should experience adverse financial implications resulting from the PPA. These adverse financial implications could arise from debt imputation or the recognition of long-term liabilities from the application of lease accounting to the Mondu PPA. At this time, the Company is not asking the Commission to grant the Company rate relief to address any costs that the Company may incur as a result of the above- described debt imputation or lease accounting. The Company does, however, ask that the Commission recognize, in its order approving the Mondu PPA, that the Company is entitled to seek rate relief at the time such effects may arise, as determined by the Commission to address the potential adverse effects of debt imputation or lease accounting, and to commit that the Commission will determine the form of and provide such relief in a timely manner.

COST RECOVERY

XV.

The Company requests that the costs associated with the Mondu PPA be deemed eligible for recovery through the appropriate cost recovery mechanisms in place at the time the Mondu Facility is placed into service. This recovery may occur through a combination of (i) the then-applicable Formula Rate Plan ("FRP"), and (ii) the Company's Fuel Adjustment Clause ("FAC"). As Ms. Ingram describes in more detail, the Company's current Formula Rate Plan will have expired by the time the Mondu PPA enters into service, and it is not yet known whether a successor mechanism will exist or what the terms of that mechanism may prescribe in terms of cost recovery for generating resources. As such, in this filing, the Company is requesting that costs for the Mondu PPA be deemed eligible for recovery through the FAC and Rider FRP, if such a mechanism continues to exist.[8] More specifically, in order to maintain consistency with the GGO Cost Allocation Ratio approved in LPSC Order No. U-36190, and which the Company is not requesting to modify in this proceeding, ELL is proposing that 75% of the costs associated with the Mondu PPA be deemed eligible for recovery through the Company's FAC, and 25% of the costs of the Mondu PPA be deemed eligible for recovery through and in accordance with the Company's then-applicable FRP, or through base rates if no FRP exists.[9]

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[8] The rate effective period for ELL's current Rider FRP is scheduled to end in August 2024. The Commission is expected to address whether a new or expanded Rider FRP should be implemented in a separate proceeding (LPSC Docket No. U-36959).

[9] This proposed cost recovery treatment assumes that the Mondu PPA has Network Resource Interconnection Service ("NRIS") through MISO. In the event the Mondu PPA does not have NRIS or Network Integration Transmission Service ("NITS") through MISO, then 100% of the costs of the PPA would be recovered through the Company's FAC.

REQUEST FOR TIMELY TREATMENT

XVI.

The Company is requesting that the Commission direct or establish a Procedural Schedule in accordance with the 120-day certification period set forth in the 1983 General Order.

REQUEST FOR NOTICE

XVII.

ELL requests that notices, correspondence, and other communications concerning this Application be directed to the following persons:

Lawrence J. Hand, Jr.
Elizabeth C. Ingram
4809 Jefferson Highway
Mail Unit L-JEF-357
Jefferson, Louisiana 70121
Telephone: (504) 840-2528
Facsimile: (504) 840-2681
lhand@entergy.com
eingram@entergy.com

Harry M. Barton
Matthew T. Brown
639 Loyola Avenue
Mail Unit L-ENT-26E
New Orleans, Louisiana 70113
Telephone: (504) 576-2984
Facsimile: (504) 576-5579
hbarton@entergy.com
mbrow12@entergy.com

Mark Strain
Duggins Wren Mann & Romero, LLP
600 Congress Ave., Suite 1900
Austin, Texas 78701
Telephone: (512) 744-9300
Facsimile: (512) 744-9399
mstrain@dwmrlaw.com

ELL requests that the foregoing persons be placed on the Official Service List for this proceeding, and respectfully requests that the Commission permit the designation of more than one person to be placed on the Official Service List for service in this proceeding.

REQUEST FOR CONFIDENTIAL TREATMENT

XVIII.

Portions of the Company's evidence supporting this Application contain information considered by the Company to be proprietary and confidential. Disclosure of certain of this information may expose the Company and its customers to an unreasonable risk of harm. Therefore, in light of the commercially sensitive nature of such information, the Company has submitted two versions of each of the affected documents, one marked "Non-Confidential

Redacted Version" and the other marked "Confidential Version." In anticipation of the execution of a suitable confidentiality agreement in this docket, the Confidential Versions bear the designation "Highly Sensitive Protected Materials" or words of similar import. Although the confidential information and documents included with this Application may be reviewed by appropriate representatives of the LPSC Staff and intervenors pursuant to the terms and conditions of a suitable confidentiality agreement once such an agreement has been executed in this Docket, this confidential information also is being provided pursuant to, and shall be exempt from public disclosure pursuant to, the Commission's General Order dated August 31, 1992 and Rule 12.1 of the Rules of Practice and Procedure of the Commission.

PRAYER FOR RELIEF

XIX.

WHEREFORE, for the foregoing reasons, Entergy Louisiana, LLC respectfully requests that, after due and lawful proceedings are held, its Application be approved. In particular, the Company requests that the Commission:

1. find that the Mondu PPA serves the public convenience and necessity and is in the public interest, and is therefore prudent, in accordance with the Commission's 1983 General Order;

2. find that the 2022 Renewables RFP was conducted in accordance with the Commission's MBM Order and that the selection of the Mondu Facility is consistent with the terms of the MBM Order;

3. find that, with respect to the Mondu PPA, the Company has complied with, or is not in conflict with, the provisions of all applicable LPSC Orders, to the extent applicable;

4. find that the Mondu PPA is eligible for inclusion in the Geaux Green Option Rider (Rider GGO) resource portfolio;

5. find that (i) 75% of costs associated with the Mondu PPA,[10] a portion (as determined by the GGO Cost Allocation Ratio approved in LPSC Order No. U-36190) of the subscription fees generated through Rider GGO, all MISO energy revenues for the Mondu PPA, and the energy-related bill credits for Rider GGO are deemed eligible for inclusion in and recovery via the Company's FAC; and (ii) 25% of the costs associated with the Mondu PPA, and a portion (as determined by the GGO Cost Allocation Ratio approved in LPSC Order No. U-36190) of the subscription fees generated through Rider GGO, are deemed eligible for recovery in accordance with the terms of the Company's FRP that is in place at the time the facilities are placed into service; or in the alternative, if ELL does not have an FRP in place at the time the Mondu Facility is placed in service, grant the Company permission to defer 25% of the costs associated with the Mondu PPA (net of Rider GGO revenues – allocated in accordance with the GGO Cost Allocation Ratio), and establish a regulatory asset, including carrying costs at the then-effective weighted average cost of capital, until those costs can be reflected in rates;

6. find that the Company is entitled to seek rate relief from the Commission to address any adverse effects of debt imputation or lease accounting that result from the Mondu PPA at such a time as those effects arise;

7. approve the terms, conditions, rights, remedies, and limitations set forth in the Mondu PPA and confirm that ELL, its member entity, and Entergy Corporation shareholders shall not be responsible, beyond the rights and remedies specified in the terms of the Mondu PPA for any acts or omissions by the Seller, its employees, or its contractors of any tier in connection with the Seller's ownership or operation of the relevant facility, including, without

[10] This proposed cost recovery treatment assumes that the Mondu PPA has NRIS through MISO. In the event the Mondu PPA does not have NRIS or NITS through MISO, then 100% of the costs of the PPA would be recovered through the Company's FAC.

limitation, the Seller's failure to deliver the contracted products under the Mondu PPA;

8. find that the confidential testimony, exhibits, and other materials referenced in this Application shall be exempt from public disclosure pursuant to the Commission's General Order dated August 31, 1992, and Rule 12.1 of the Rules of Practice and Procedure of the Louisiana Public Service Commission;

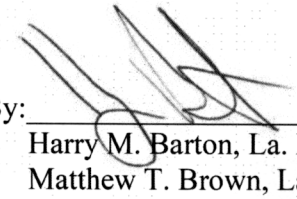
9. direct the procedural steps necessary to facilitate a Commission decision on the Company's Application consistent with the 120-day requirement in the Commission's 1983 General Order;

10. establish a fifteen-day period for interventions in this proceeding;

11. direct that notice of all matters in these proceedings be sent to Lawrence J. Hand, Jr. and Elizabeth Ingram, as well as to Harry M. Barton, Matthew T. Brown and Mark Strain, as representatives of Entergy Louisiana, LLC; and

12. grant such other relief to which the Company shows itself to be entitled.

Respectfully submitted,



By:_____

Harry M. Barton, La. Bar No. 29751
Matthew T. Brown, La. Bar No. 25595
639 Loyola Avenue
Mail Unit L-ENT-26E
New Orleans, Louisiana 70113
Telephone: (504) 576-2984
Facsimile: (504) 576-5579
hbarton@entergy.com
mbrow12@entergy.com

-and-

Mark Strain, Texas Bar No. 00785067
Duggins Wren Mann & Romero, LLP
600 Congress Avenue, Suite 1900
Austin, Texas 78701
Telephone: (512) 744-9300
Facsimile: (512) 744-9399
mstrain@dwmrlaw.com

ATTORNEYS FOR
ENTERGY LOUISIANA, LLC